

Central Valley Regional Water Quality Control Board

2 December 2019

WDID: 5A04NC00003

Mr. James Barger, President
Pheasant Landing III HOA
13961 Lindbergh Cir.
Chico, CA 95973.

CERTIFIED MAIL:
7018 1130 0001 8556 4217

NOTICE OF APPLICABILITY, WATER QUALITY ORDER 2014-0153-DWQ-R5324, PHEASANT LANDING III HOMEOWNERS ASSOCIATION, WASTEWATER TREATMENT/DISPOSAL FACILITY, BUTTE COUNTY

On 12 July 2019 Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff inspected the Pheasant Landing III Homeowners Association (HOA) wastewater treatment System (Facility). Pheasant Landing III HOA, hereafter the "Discharger". The Facility is located on Lindbergh Circle, Butte County. Based on the site inspection and a case file review, the facility treats and disposes of less than 100,000 gallons of wastewater per day and is therefore eligible for coverage under the general and specific conditions of State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems (General Order). This letter serves as formal notice that the General Order is applicable to your facility and the wastewater discharge described below. You are hereby assigned General Order 2014-0153-DWQ-R5324 for your facility.

You can also find the General Order on the [State Water Board's Adopted Orders web page](http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf) (http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf).

You should familiarize yourself with the entire General Order and its attachments that were given to you during your inspection on 12 July 2019, which prescribes mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements that are applicable to your treatment and disposal methods must be completed in accordance with the sections of the General Order and the attached Monitoring and Reporting Program (MRP). This MRP was developed after consideration of your treatment system infrastructure and site conditions described in the attached Technical Memorandum.

KARL E. LONGLEY SCD, P.E., CHAIR | PATRICK PULUPA, ESQ., EXECUTIVE OFFICER

REGULATORY BACKGROUND

The Discharger's wastewater treatment and disposal system is currently regulated under the individual Waste Discharge Requirements (WDRs) Order 5-01-277. The WDR was adopted on 7 December 2001 and is due for an update.

FACILITY AND DESCRIPTION

Hydrotech Solutions Inc., operates the wastewater treatment/disposal Facility for Pheasant Landing III HOA, which is located in Section 32, T23N, R1E, MDB&M with surface water drainage to Keefer Creek, a tributary to the Sacramento River as shown on Attachment A. The Discharger has been established as the entity responsible for the daily operation and maintenance of the wastewater treatment system for the Facility. The system consists of individual Septic tanks w/ sump pump, pressurized collection lines, 5000-gallon equalization tank, an Orenco Advantex Max pod with chlorine disinfection and subsurface disposal.

Disinfection of treated wastewater was originally required at the site due to shallow groundwater and poor soil conditions. However, analytical data indicated that water quality objectives could be met without disinfection and disinfection was discontinued at the Facility. Should a need for disinfection be required this NOA and MRP will be amended as appropriate.

This is an existing facility, therefore enrollment under the General Order is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to California Code of Regulations, title 14, section 15301 which applies to ongoing or existing projects.

FACILITY SPECIFIC REQUIREMENTS

The Discharger will maintain exclusive control over the discharge and shall comply with the terms and conditions of this NOA and the General Order 2014-0153-DWQ-R5324, with all attachments.

The General Order states in Section B.1.L that the discharger shall comply with the setbacks as described in Table 3. The following applicable setback requirements from Table 3, for which the Discharger shall comply, are summarized below:

Table 3: Summary of Wastewater System Setbacks

The following table has been adapted from Table 3 of the General Order and only include setback requirements for specific equipment or activities applicable to the subject facility. Table notes are not in alphabetical order due to the way they were formatted in the General Order.

N/A denotes Not Applicable, as the defined feature is not found within the general area of the facility.

Equipment or Activity	Domestic Well	Flowing Stream (see a below)	Ephemeral Stream Drainage (see b below)	Property Line	Lake or Reservoir (see d. below)
Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System (see e below)	150 ft. (see y below)	50 ft. (see c below)	50 ft.	5 ft. (see c below) (see z below)	200 ft. (see w below)
Leach Field (see f below)	100 ft. (see r below)	100 ft.	50 ft	5ft. (see c below)	200 ft. (see w below)

Table Notes:

- a A flowing stream shall be measured from the ordinary high-water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.
- b Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snowmelt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high-water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage features. The ephemeral stream shall be a "losing stream" (discharging surface water to groundwater) at the proposed wastewater system site.
- c Setback established by California Plumbing Code, Table K-1.
- d Lake or reservoir boundary measured from the high-water line.
- e Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection.
- f Leach Field includes all subsurface dispersal systems, including mound systems except seepage pits.
- r Setback established by California Code of Regulations, title 22, section 60310(c).
- w Setback established by the Onsite Wastewater Treatment System Policy, section 7.5.5.
- y Setback established by Onsite Wastewater Treatment System Policy, section 7.5.6.
- z Collection system to property line setback is not applicable.

The General Order also states in Section E.4.a that the discharger shall comply with the MRP issued with the NOA. The MRP issued with this NOA requires the monitoring of the Facility's equalization tank, aerobic treatment system, subsurface disposal area, solids disposal, and groundwater monitoring well network.

Failure to comply with the requirements in the documents could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

Facility Information

Facility Name	Pheasant Landing III HOA
Program	WDR
Order Number	R5-2014-0153-R5324
WDID	5A04NC00003
Design Flow	15,000
Threat and Complexity	3B
Monitoring Requirements	Yes

Billing Information

Name	Pheasant Landing III HOA /Co A+Accounting
Contact	Debi Hobbs
Email	bookwormto@aol.com
Address	PO Box 8064, Chico CA 95927
Phone	(530) 892 - 2220

The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, MRPs, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to the following email address centralvalleyredding@waterboards.ca.gov.

Documents that are 50MB or larger should be transferred to a disc and mailed to the appropriate regional water board office, in this case 364 Knollcrest Drive, Suite 205, Redding, CA 96002.

To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15

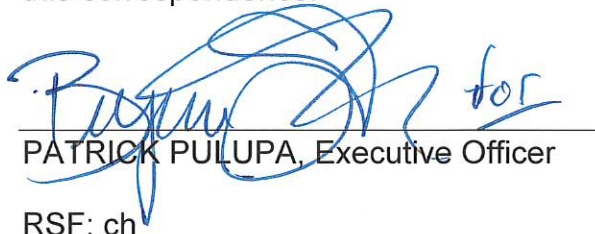
WDID: 5A04NC00003

Facility Name: Pheasant Landing III HOA

Order: 2014-0153-DWQ-R5324

Please note that WDRs Order 5-01-277 is proposed to be rescinded at the 20/21 Feb 2020 meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, coverage for your facility under the General Order shall become applicable subject to this Notice of Applicability.

If you have any questions regarding submitting an updated report of waste discharge, making changes to your permitted operations, compliance or enforcement please contact Ron S. Falkowski by phone at (530) 224-3227, by email at ron.falkowski@waterboards.ca.gov, or at the footer address located on the first page of this correspondence.



PATRICK PULUPA, Executive Officer

RSF: ch

Attachments: Attachment A – Site Location Map
Attachment B – Facility Map
Technical Memorandum
Monitoring and Reporting Program

cc: Patrice Sorenson, Hydrotech Solutions, Inc., Chico

cc without enclosures: Tim O'Brien, State Water Board, Sacramento
Butte County Environmental Health Department, Oroville
David Lancaster, SWRCB, Office of Chief Counsel, Sacramento